



Australian Centre for International Agricultural Research Act 1982

No. 9, 1982

Compilation No. 17

Compilation date: 27 March 2026

Includes amendments: Act No. 13, 2026

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Australian Centre for International Agricultural Research Act 1982* that shows the text of the law as amended and in force on 27 March 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Presentational changes

The *Legislation Act 2003* provides for First Parliamentary Counsel to make presentational changes to a compilation. Presentational changes are applied to give a more consistent look and feel to legislation published on the Register, and enable the user to more easily navigate those documents.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part I—Preliminary	1
1 Short title.....	1
2 Commencement	1
3 Interpretation.....	1
Part II—The Australian Centre for International Agricultural Research	3
4 Establishment of Centre.....	3
4A The Chief Executive Officer.....	3
5 Functions of the CEO	3
5A Power of Minister to give directions.....	4
6 Functions of the staff of the Centre	4
Part III—Commission for International Agricultural Research	5
Division 1—The Commission	5
7 Establishment of Commission	5
8 Constitution of the Commission	5
9 Functions of the Commission	5
Division 2—The Commissioners	6
10 Appointment of Commissioners	6
11 Appointments to be part-time	6
12 Terms and conditions—general	6
13 Remuneration and allowances	6
14 Acting Commissioner	7
15 Leave of absence.....	7
16 Resignation	7
16A Termination of appointment	7
16B Disclosure of interests.....	8
Division 3—Meetings of the Commission	9
16C Times and places of meetings.....	9
16D Notice of meetings	9
16E Who presides at meetings	9
16F Quorum	9
16G Voting at meetings	10
16H Conduct of meetings	10

Division 4—Delegation by Commission	11
16J Delegation by Commission.....	11
Division 5—Directions by the Minister	12
16K Directions by the Minister	12
Part IV—The Policy Advisory Council	13
17 Establishment of Council.....	13
18 Function of Council	13
19 Constitution of Council.....	13
19A Remuneration and allowances	14
20 President to keep Council informed.....	15
21 Termination of appointment	15
22 Resignation	15
23 Meetings of Council.....	16
Part V—The CEO	17
24 Appointment of CEO	17
25 Appointment to be full-time	17
26 Terms and conditions—general	17
27 Remuneration and allowances	17
28 Other paid work	18
29 Acting CEO.....	18
29A Leave of absence.....	18
29B Resignation	19
29BA Suspension of appointment.....	19
29C Termination of appointment	21
29E CEO not subject to direction by the Commission on certain matters.....	22
Part VI—Staff and consultants	23
30 Staff.....	23
31 Arrangements relating to staff	23
32 Consultants	23
Part VIA—Application of the finance law	24
32A Application of the finance law.....	24
Part VII—The Australian Centre for International Agricultural Research Account	25
33 Australian Centre for International Agricultural Research Account.....	25

34	Credits to the Account	25
35	Purposes of the Account	25
Part VIII—Miscellaneous		27
39	Annual report	27
41	Delegation by Minister	27
42	Regulations	27
Endnotes		28
Endnote 1—About the endnotes		28
Endnote 2—Abbreviation key		30
Endnote 3—Legislation history		31
Endnote 4—Amendment history		35

An Act to encourage research for the purpose of identifying, or finding solutions to, agricultural problems of developing countries

Part I—Preliminary

1 Short title

This Act may be cited as the *Australian Centre for International Agricultural Research Act 1982*.

2 Commencement

This Act shall come into operation on a date to be fixed by Proclamation.

3 Interpretation

In this Act, unless the contrary intention appears:

Account means the account continued in existence by section 33.

agricultural research means scientific, technical, economic or socio-economic research in connection with agriculture, and includes the publication of reports, periodicals, books and papers in connection with any such research.

agriculture includes such uses of land as are prescribed for the purposes of this definition.

annual report means the report referred to in section 39.

appointed member of the Council means a member of the Council appointed under subsection 19(2).

APS Code of Conduct means the Code of Conduct (within the meaning of the *Public Service Act 1999*).

Section 3

Centre means the Australian Centre for International Agricultural Research.

CEO means the Chief Executive Officer of the Centre.

Chair means the Chair of the Commission.

Commission means the Commission for International Agricultural Research established by section 7.

Commissioner means a Commissioner of the Commission appointed in accordance with section 10 and includes the Chair.

Council means the Policy Advisory Council.

institution includes:

- (a) an organization, group or body, whether incorporated or unincorporated; and
- (b) a Department of State, or an authority, of the Commonwealth or of a State or Territory.

international agricultural research centre means an independent, non-profit organisation that:

- (a) is internationally funded; and
- (b) carries out:
 - (i) research into sustainable improvements in the productivity of agriculture, forestry and fisheries in developing countries; and
 - (ii) activities related to such research.

paid work means work for financial gain or reward (whether as an employee, a self-employed person or otherwise).

performance standard means the performance standard determined under subsection 24(4).

President means the President of the Council.

serious misconduct has a meaning affected by subsection 29C(1A).

Part II—The Australian Centre for International Agricultural Research

4 Establishment of Centre

- (1) There is hereby established a Centre by the name of the Australian Centre for International Agricultural Research.
- (2) The Centre consists of:
 - (a) the CEO; and
 - (b) the staff of the Centre referred to in section 30.

4A The Chief Executive Officer

There is to be a Chief Executive Officer of the Centre.

Note: Part V deals with the appointment and terms and conditions of the CEO.

5 Functions of the CEO

- (1) The functions of the CEO are:
 - (a) to formulate programs and policies with respect to agricultural research for either or both of the following purposes:
 - (i) identifying agricultural problems of developing countries;
 - (ii) finding solutions to agricultural problems of developing countries;
 - (b) to commission agricultural research by persons or institutions (whether the research is to be conducted in Australia or overseas) in accordance with such programs and policies; and
 - (c) to communicate to persons and institutions the results of such agricultural research; and

Section 5A

- (d) to establish and fund training schemes related to the research programs referred to in paragraph (a); and
 - (e) to conduct and fund development activities related to those research programs; and
 - (f) to fund international agricultural research centres.
- (2) The CEO must, in performing his or her functions with respect to agricultural research, have regard to the need for persons or institutions in developing countries to share in that research.
- (3) Nothing in this section authorises, or permits, the CEO to carry out research on behalf of the Commonwealth.
- (4) The CEO must, in performing his or her functions, comply with any directions given to the CEO under section 5A.

5A Power of Minister to give directions

- (1) The Minister may, by writing, give directions to the CEO with respect to the performance of the CEO's functions under this Act (including in relation to the appropriate strategic direction the CEO should take in performing his or her functions).

Note: A direction under this section is included in the annual report: see section 39.

- (2) A direction given under subsection (1) is not a legislative instrument.

6 Functions of the staff of the Centre

The functions of the staff of the Centre referred to in section 30 are to assist the CEO perform his or her functions.

Part III—Commission for International Agricultural Research

Division 1—The Commission

7 Establishment of Commission

The Commission for International Agricultural Research is established by this section.

8 Constitution of the Commission

The Commission consists of:

- (a) a Chair; and
- (b) 6 other Commissioners.

9 Functions of the Commission

The functions of the Commission are:

- (a) to provide advice to the Minister in relation to the formulation of programs of the kind referred to in paragraph 5(1)(a); and
- (b) to provide advice to the Minister in relation to the funding of things referred to in paragraphs 5(1)(d), (e) and (f); and
- (c) to provide advice to the Minister on program and funding priorities; and
- (d) to provide advice to the Minister, on the Minister's request, on any other matter relating to this Act.

Division 2—The Commissioners

10 Appointment of Commissioners

- (1) A Commissioner is to be appointed by the Governor-General by written instrument.
- (2) A Commissioner holds office for the period specified in the instrument of appointment. The period must not exceed 3 years.
- (3) A person cannot be appointed as a Commissioner if the person is a member of the Council.

11 Appointments to be part-time

A Commissioner holds office on a part-time basis.

12 Terms and conditions—general

A Commissioner holds office on the terms and conditions (if any) in relation to matters not covered by this Act that are determined by the Governor-General.

13 Remuneration and allowances

- (1) A Commissioner is to be paid the remuneration that is determined by the Remuneration Tribunal. If no determination of that remuneration by the Tribunal is in operation, the Commissioner is to be paid the remuneration that is prescribed by the regulations.
- (2) A Commissioner is to be paid the allowances that are prescribed by the regulations.
- (3) This section has effect subject to the *Remuneration Tribunal Act 1973*.

14 Acting Commissioner

The Minister may appoint a person to act as a Commissioner:

- (a) during a vacancy in the office of the Commissioner (whether or not an appointment has previously been made to the office); or
- (b) during any period, or during all periods, when the Commissioner is absent from duty or from Australia, or is, for any reason, unable to perform the duties of the office.

Note: For rules that apply to acting appointments, see section 33A of the *Acts Interpretation Act 1901*.

15 Leave of absence

- (1) The Chair may grant leave of absence to any other Commissioner on the terms and conditions that the Chair determines.
- (2) The Minister may grant leave of absence to the Chair on the terms and conditions that the Minister determines.

16 Resignation

A Commissioner may resign his or her appointment by giving the Governor-General a written resignation.

16A Termination of appointment

- (1) The Governor-General may terminate the appointment of a Commissioner for misbehaviour or physical or mental incapacity.
- (2) The Governor-General must terminate the appointment of a Commissioner if:
 - (a) the Commissioner:
 - (i) becomes bankrupt; or
 - (ii) applies to take the benefit of any law for the relief of bankrupt or insolvent debtors; or
 - (iii) compounds with his or her creditors; or

Section 16B

- (iv) makes an assignment of his or her remuneration for the benefit of his or her creditors; or
- (b) the Commissioner is absent, except on leave of absence, from 3 consecutive meetings of the Commission; or
- (c) the Commissioner fails, without reasonable excuse, to comply with section 29 of the *Public Governance, Performance and Accountability Act 2013* (which deals with the duty to disclose interests) or rules made for the purposes of that section.

16B Disclosure of interests

- (1) A disclosure by a Commissioner under section 29 of the *Public Governance, Performance and Accountability Act 2013* (which deals with the duty to disclose interests) must be made to the Minister.
- (2) Subsection (1) applies in addition to any rules made for the purposes of that section.
- (3) For the purposes of this Act and the *Public Governance, Performance and Accountability Act 2013*, the Commissioner is taken not to have complied with section 29 of that Act if the Commissioner does not comply with this section.

Division 3—Meetings of the Commission

16C Times and places of meetings

- (1) The Commission must hold such meetings as are necessary for the efficient performance of its functions.
- (2) Meetings are to be held at the times and places determined by the Commission.
- (3) The Chair may call a meeting at any time.
- (4) The Chair must ensure that at least 4 meetings are held each financial year.

16D Notice of meetings

Each Commissioner is entitled to receive reasonable notice of the Commission's meetings.

16E Who presides at meetings

- (1) The Chair presides at all meetings of the Commission at which he or she is present.
- (2) If the Chair is not present at a meeting of the Commission, the Commissioners present must elect a Commissioner to preside at the meeting.

16F Quorum

At a meeting of the Commission, 4 Commissioners constitute a quorum.

Section 16G

16G Voting at meetings

- (1) A question arising at a meeting of the Commission is to be decided by a majority of the votes of the Commissioners present and voting.
- (2) The Commissioner presiding at a meeting of the Commission has a deliberative vote and, if necessary, also a casting vote.

16H Conduct of meetings

- (1) The Commission may, subject to this Division, regulate proceedings at its meetings as it considers appropriate.
- (2) The Commission must ensure that minutes of its meetings are kept.

Division 4—Delegation by Commission

16J Delegation by Commission

- (1) The Commission may, by resolution, delegate all or any of its functions or powers under this Act to a Commissioner.

Note: Sections 34AA to 34A of the *Acts Interpretation Act 1901* contain provisions relating to delegations.

- (2) In exercising a delegated function or power, the delegate must comply with any written directions of the Commission.
- (3) The delegation continues in force despite a change in the constitution of the Commission.
- (4) The delegation may be varied or revoked by resolution of the Commission (whether or not there has been a change in the constitution of the Commission).
- (5) A certificate signed by the Chair stating any matter with respect to the delegation is prima facie evidence of the matter.
- (6) A document purporting to be a certificate mentioned in subsection (5) is taken to be such a certificate and to have been duly given unless the contrary is established.

Division 5—Directions by the Minister

16K Directions by the Minister

- (1) The Minister may, by writing, give directions to the Commission with respect to the performance of the Commission's functions under this Act.
- (2) In giving a direction, the Minister must have regard to any relevant advice that he or she may have received from the Council under section 18.
- (3) The Minister must give a copy of a direction to the CEO.

Note: A direction under this section is included in the annual report: see section 39.

Part IV—The Policy Advisory Council

17 Establishment of Council

There is hereby established a Council by the name of the Policy Advisory Council.

18 Function of Council

- (1) The function of the Council is to provide advice to the Minister regarding:
 - (a) agricultural problems of developing countries; and
 - (b) programs and policies with respect to agricultural research for either or both of the following purposes:
 - (i) identifying agricultural problems of developing countries;
 - (ii) finding solutions to agricultural problems of developing countries.
- (2) The Council shall provide advice under subsection (1) on such occasions as it thinks fit and on request by the Minister.
- (3) The Minister shall arrange for a copy of any advice provided by the Council to be furnished to the Commission.

19 Constitution of Council

- (1) The Council shall consist of:
 - (a) a President;
 - (c) the person for the time being occupying, or performing the duties of, the position in the Australian Public Service known as Director-General, Australian International Development Assistance Bureau, or a person nominated by the Director-General; and
 - (d) not fewer than 9 nor more than 11 other members.

Section 19A

- (2) The members referred to in paragraphs (1)(a) and (d) shall be appointed by the Minister.
- (2A) A person cannot be appointed as a member of the Council if the person is a Commissioner.
- (3) In appointing persons under subsection (2):
 - (a) the Minister shall have regard to:
 - (i) the knowledge of the persons concerning agricultural problems of developing countries; or
 - (ii) the experience of the persons in organizing or conducting agricultural research; and
 - (b) the Minister shall ensure that a substantial number of the members of the Council are residents of countries other than Australia.
- (4) An appointed member of the Council:
 - (a) shall be appointed to be a part-time member; and
 - (b) holds office for such term, not exceeding 3 years, as is specified in the instrument of his or her appointment.
- (5) The performance of the functions of the Council is not affected by reason only of the existence of either or both of the following circumstances:
 - (a) a vacancy in the office of President;
 - (c) the number of members referred to in paragraph (1)(d) having fallen below 9 for a period of not more than 3 months.
- (6) The appointment of a person under subsection (2) is not invalidated, and shall not be called in question, by reason of a defect or irregularity in, or in connection with, his or her appointment.

19A Remuneration and allowances

- (1) An appointed member of the Council is to be paid the remuneration that is determined by the Remuneration Tribunal. If no determination of that remuneration by the Tribunal is in

operation, the appointed member of the Council is to be paid the remuneration that is prescribed by the regulations.

- (2) An appointed member of the Council is to be paid the allowances that are prescribed by the regulations.
- (3) This section has effect subject to the *Remuneration Tribunal Act 1973*.

20 President to keep Council informed

The President shall ensure that the Council is kept adequately informed with respect to the affairs of the Centre.

21 Termination of appointment

- (1) The Minister may terminate the appointment of an appointed member of the Council by reason of misbehaviour or physical or mental incapacity.
- (2) If an appointed member of the Council:
 - (a) becomes bankrupt, applies to take the benefit of any law for the relief of bankrupt or insolvent debtors, compounds with his or her creditors or makes an assignment of his or her remuneration for their benefit; or
 - (b) is absent, except on leave granted by the Council, from 3 consecutive meetings of the Council otherwise than on business of the Council undertaken with the approval of the Council;the Minister shall terminate the appointment of that member.

22 Resignation

An appointed member of the Council may resign his or her office by writing signed by him or her and delivered to the Minister.

23 Meetings of Council

- (1) The President:
 - (a) shall convene such meetings of the Council as he or she considers necessary for the conduct of its business; and
 - (b) shall, on receipt of a written request signed by no fewer than 6 members of the Council, convene a meeting of the Council.
- (2) The Minister may at any time convene a meeting of the Council.
- (3) The President shall preside at all meetings of the Council at which he or she is present.
- (4) If the President is not present at a meeting of the Council, the members present shall elect one of their number to preside at that meeting.
- (5) At a meeting of the Council, 7 members constitute a quorum.
- (6) Subject to subsection (7), all questions arising at a meeting of the Council shall be decided by a majority of the votes of the members present and voting, including the member presiding.
- (7) In the event of an equality of votes on a motion proposed at a meeting of the Council, the motion shall be taken not to be passed.
- (8) Subject to this section, the Council may regulate the conduct of proceedings at its meetings as it thinks fit and shall keep minutes of those proceedings.

Part V—The CEO

24 Appointment of CEO

- (1) The CEO is to be appointed by the Governor-General by written instrument.
- (2) The CEO holds office for the period specified in the instrument of appointment. The period must not exceed 5 years.
- (3) A person may be appointed as both the CEO and a Commissioner (including the Chair).

Performance standard

- (4) The Minister may, in writing, determine a performance standard for the CEO.

Note: Unsatisfactory performance may lead to termination of the CEO's appointment: see subsection 29C(3).

- (5) The performance standard is not a legislative instrument.

25 Appointment to be full-time

The CEO holds office on a full-time basis.

26 Terms and conditions—general

The CEO holds office on the terms and conditions (if any) in relation to matters not covered by this Act that are determined by the Governor-General.

27 Remuneration and allowances

- (1) The CEO is to be paid the remuneration that is determined by the Remuneration Tribunal. If no determination of that remuneration

Section 28

by the Tribunal is in operation, the CEO is to be paid the remuneration that is prescribed by the regulations.

- (2) The CEO is to be paid the allowances that are prescribed by the regulations.
- (3) This section has effect subject to the *Remuneration Tribunal Act 1973*.

28 Other paid work

The CEO must not engage in paid work outside the duties of the CEO without the Minister's approval.

29 Acting CEO

The Minister may appoint a person to act as the CEO:

- (a) during a vacancy in the office of the CEO (whether or not an appointment has previously been made to the office); or
- (b) during any period, or during all periods, when the CEO is suspended from office, is absent from duty or from Australia, or is, for any reason, unable to perform the duties of the office.

Note: For rules that apply to acting appointments, see section 33A of the *Acts Interpretation Act 1901*.

29A Leave of absence

- (1) The CEO has the recreation leave entitlements that are determined by the Remuneration Tribunal.
- (2) The Minister may grant the CEO leave of absence, other than recreation leave, on the terms and conditions as to remuneration or otherwise that the Minister determines.

29B Resignation

The CEO may resign his or her appointment by giving the Governor-General a written resignation.

29BA Suspension of appointment

- (1) The Minister may, by notice in writing, suspend the appointment of the CEO if the Minister believes that the suspension would be in the interests of the Centre.
- (2) The appointment is suspended for such period (not exceeding 3 months) as the Minister considers appropriate in all of the circumstances. That period must be specified in the notice.
- (3) The suspension of the appointment of the CEO does not affect any entitlement of the CEO to be paid remuneration and allowances.

Extension of suspension

- (4) Before the end of the period of suspension (including that period as previously extended under this subsection), the Minister may, by notice in writing, extend the period of suspension if:
 - (a) the Minister believes that the extension would be in the interests of the Centre; or
 - (b) subsection (7) applies.
- (5) The suspension is extended for such period as the Minister considers appropriate in all of the circumstances. The period of suspension, as extended, must be specified in the notice.
- (6) The period of suspension, as extended, must not exceed:
 - (a) if subsection (7) applies—12 months; or
 - (b) otherwise—3 months.
- (7) For the purposes of paragraphs (4)(b) and (6)(a), this subsection applies if:
 - (a) when the Minister extends the period of suspension:

Section 29BA

- (i) an inquiry to which subsection (8) applies is being conducted; and
 - (ii) the Minister is satisfied that extending the period of suspension is necessary for the purposes of the conduct of the inquiry, the Minister considering the findings or report of the inquiry or action being taken in response to the findings or report; or
 - (b) both:
 - (i) an inquiry to which subsection (8) applies was being conducted at any time in the 4 weeks before the Minister extends the period of suspension; and
 - (ii) when the Minister extends the period of suspension, the Minister is satisfied that extending the period of suspension is necessary for the purposes of the Minister considering the findings or report of the inquiry or action being taken in response to the findings or report.
- (8) This subsection applies to an inquiry if:
- (a) the inquiry commences before the end of 3 months starting at the start of the period of suspension; and
 - (b) the inquiry is any of the following:
 - (i) an inquiry by the Australian Public Service Commissioner under section 41A of the *Public Service Act 1999* into whether the CEO has breached the APS Code of Conduct;
 - (ii) a corruption investigation (within the meaning of the *National Anti-Corruption Commission Act 2022*) into a corruption issue involving conduct of the CEO;
 - (iii) an inquiry, conducted at the request or direction of the Minister, into whether the CEO's conduct or behaviour amounts to serious misconduct by the CEO.
- (9) Subsections (4) to (8) do not limit the application of subsection 33(3) of the *Acts Interpretation Act 1901* in relation to a notice under subsection (1) of this section.

29C Termination of appointment

- (1) The Governor-General may terminate the appointment of the CEO:
 - (a) for misbehaviour; or
 - (b) if the CEO is unable to perform the duties of the CEO's office because of physical or mental incapacity; or
 - (c) if the CEO's conduct or behaviour amounts to serious misconduct by the CEO.
- (1A) Without limiting the circumstances in which the CEO's conduct or behaviour amounts to serious misconduct by the CEO, the CEO's conduct or behaviour amounts to *serious misconduct* by the CEO in the following circumstances:
 - (a) both:
 - (i) the conduct or behaviour constitutes a breach of the APS Code of Conduct; and
 - (ii) the Minister is satisfied that the breach is serious enough to justify termination of the CEO's appointment;
 - (b) the conduct or behaviour constitutes unlawful discrimination (within the meaning of the *Australian Human Rights Commission Act 1986*);
 - (c) an investigation report (within the meaning of the *National Anti-Corruption Commission Act 2022*) includes a finding or opinion that the CEO has engaged, is engaging or will engage in:
 - (i) corrupt conduct (within the meaning of that Act); or
 - (ii) conduct that could constitute or involve corrupt conduct.
- (2) The Governor-General must terminate the appointment of the CEO if:
 - (a) the CEO:
 - (i) becomes bankrupt; or
 - (ii) applies to take the benefit of any law for the relief of bankrupt or insolvent debtors; or
 - (iii) compounds with his or her creditors; or

Section 29E

- (iv) makes an assignment of his or her remuneration for the benefit of his or her creditors; or
 - (b) the CEO is absent, except on leave of absence, for 14 consecutive days or for 28 days in any 12 months; or
 - (c) the CEO engages, except with the Minister's approval, in paid work outside the duties of his or her office; or
 - (d) the CEO fails, without reasonable excuse, to comply with section 29 of the *Public Governance, Performance and Accountability Act 2013* (which deals with the duty to disclose interests) or rules made for the purposes of that section.
- (3) The Governor-General may terminate the appointment of the CEO if, in the Minister's opinion, having regard to the performance standard (if any), the performance of the CEO has been unsatisfactory.

29E CEO not subject to direction by the Commission on certain matters

To avoid doubt, the CEO is not subject to direction by the Commission in relation to the CEO's performance of functions, or exercise of powers, under:

- (a) the *Public Governance, Performance and Accountability Act 2013*; or
 - (b) the *Public Service Act 1999*;
- in relation to the Centre.

Part VI—Staff and consultants

30 Staff

- (1) The staff of the Centre shall be persons engaged under the *Public Service Act 1999*.
- (2) For the purposes of the *Public Service Act 1999*:
 - (a) the CEO and the APS employees assisting the CEO together constitute a Statutory Agency; and
 - (b) the CEO is the Head of that Statutory Agency.

31 Arrangements relating to staff

- (1) The CEO may arrange with an Agency Head (within the meaning of the *Public Service Act 1999*) or with a body (other than a company or an association) established for a public purpose by or under a law of the Commonwealth for the services of officers or employees of the Agency or body to be made available to the CEO in relation to the CEO's functions.
- (2) The CEO may enter into an arrangement with the appropriate authority of a State or Territory for the services of officers or employees of the Public Service of the State or Territory, or of a body established for a public purpose by or under a law of the State or Territory, to be made available to the CEO in relation to the CEO's functions.

32 Consultants

The CEO may, on behalf of the Commonwealth, engage consultants to perform services for the CEO related to the CEO's functions.

Part VIA—Application of the finance law

32A Application of the finance law

For the purposes of the finance law (within the meaning of the *Public Governance, Performance and Accountability Act 2013*):

- (a) the following combination of bodies is a listed entity:
 - (i) the Centre;
 - (ii) the Commission;
 - (iii) the Council; and
- (b) the listed entity is to be known as the Australian Centre for International Agricultural Research; and
- (c) the CEO is the accountable authority of the listed entity; and
- (d) the following persons are officials of the listed entity:
 - (i) the CEO;
 - (ii) the Commissioners;
 - (iii) the members of the Council referred to in subsection 19(1);
 - (iv) the staff of the Centre referred to in section 30;
 - (v) persons whose services are made available to the CEO under section 31;
 - (vi) consultants engaged under section 32; and
- (e) the purposes of the listed entity include:
 - (i) the functions of the CEO referred to in section 5; and
 - (ii) the functions of the staff of the Centre referred to in section 6; and
 - (iii) the functions of the Commission referred to in section 9; and
 - (iv) the function of the Council referred to in section 18.

Part VII—The Australian Centre for International Agricultural Research Account

33 Australian Centre for International Agricultural Research Account

- (1) There is continued in existence the Australian Centre for International Agricultural Research Account.

Note: The Account was established by subsection 5(3) of the *Financial Management Legislation Amendment Act 1999*.

- (2) The Account is a special account for the purposes of the *Public Governance, Performance and Accountability Act 2013*.

34 Credits to the Account

There must be credited to the Account amounts equal to the following:

- (a) all money appropriated by the Parliament for the purposes of the Account;
- (b) other money received by the Commonwealth in relation to the performance of the functions of the CEO;
- (c) amounts of any gifts given or bequests made for the purposes of the Account.

Note: An Appropriation Act provides for amounts to be credited to a special account if any of the purposes of the special account is a purpose that is covered by an item in the Appropriation Act.

35 Purposes of the Account

- (1) This section sets out the purposes of the Account.
- (2) Amounts standing to the credit of the Account may be debited for the following purposes:

Section 35

- (a) in payment or discharge of the costs, expenses and other obligations incurred by the Commonwealth in the performance of the functions of the CEO or of the staff of the Centre referred to in section 30;
- (b) in payment of any remuneration and allowances payable to any person under this Act.

Part VIII—Miscellaneous

39 Annual report

The annual report prepared by the CEO and given to the Minister under section 46 of the *Public Governance, Performance and Accountability Act 2013* for a period must include:

- (a) particulars of all directions given during the period by the Minister to the CEO under section 5A of this Act; and
- (b) particulars of all directions given during the period by the Minister to the Commission under section 16K of this Act.

41 Delegation by Minister

The Minister may, by writing, delegate to any person all or any of the Minister's functions or powers under this Act.

42 Regulations

The Governor-General may make regulations, not inconsistent with this Act, prescribing all matters that are required or permitted by this Act to be prescribed, or are necessary or convenient to be prescribed, for carrying out or giving effect to this Act.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

Endnote 1—About the endnotes

can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnotes

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	p = page(s)
amdt = amendment	para = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
ch = Chapter(s)	prev = previous
cl = clause(s)	(prev...) = previously
cont. = continued	pt = Part(s)
def = definition(s)	r = regulation(s)/Court rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
div = Division(s)	rep = repealed
ed = editorial change	rs = repealed and substituted
exp = expires/expired or ceases/ceased to have effect	s = section(s)/subsection(s) /rule(s)/subrule(s)/order(s)/suborder(s)
gaz = gazette	sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	SLI = Select Legislative Instrument
LIA = <i>Legislative Instruments Act 2003</i>	SR = Statutory Rules
(md) = misdescribed amendment can be given effect	sub ch = Sub-Chapter(s)
(md not incorp) = misdescribed amendment cannot be given effect	sub div = Subdivision(s)
mod = modified/modification	sub pt = Subpart(s)
No. = Number(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Centre for International Agricultural Research Act 1982	9, 1982	30 Mar 1982	3 June 1982 (<i>see Gazette</i> 1982, No. G22)	
Statute Law (Miscellaneous Provisions) Act (No. 1) 1983	39, 1983	20 June 1983	s. 3: 18 July 1983 (<i>a</i>)	s. 7(1)
Statute Law (Miscellaneous Provisions) Act (No. 2) 1983	91, 1983	22 Nov 1983	s. 3: 20 Dec 1983 (<i>b</i>)	s. 6(1)
Public Service Reform Act 1984	63, 1984	25 June 1984	s. 151(1): 1 July 1984 (<i>see Gazette</i> 1984, No. S245) (<i>c</i>)	s. 151(9)
Public Service and Statutory Authorities Amendment Act 1985	166, 1985	11 Dec 1985	s. 45: 8 Jan 1986 (<i>d</i>)	s. 45(2)
Statute Law (Miscellaneous Provisions) Act 1987	141, 1987	18 Dec 1987	s. 3: Royal Assent (<i>e</i>)	s. 5(1)
Industrial Relations Legislation Amendment Act 1991	122, 1991	27 June 1991	ss. 4(1), 10(b) and 15–20: 1 Dec 1988 ss. 28(b)–(e), 30 and 31: 10 Dec 1991 (<i>see Gazette</i> 1991, No. S332) Remainder: Royal Assent	s. 31(2)

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Centre for International Agricultural Research Amendment Act 1992	170, 1992	11 Dec 1992	11 Dec 1992	—
Statute Law Revision Act 1996	43, 1996	25 Oct 1996	Schedule 4 (item 20): 25 Oct 1996 (s 2(1))	—
Audit (Transitional and Miscellaneous) Amendment Act 1997	152, 1997	24 Oct 1997	Schedule 2 (items 216–225): 1 Jan 1998 (s 2(2))	—
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov 1999	Schedule 1 (items 144–149): 5 Dec 1999 (s 2(1), (2))	—
Abolition of Compulsory Age Retirement (Statutory Officeholders) Act 2001	159, 2001	1 Oct 2001	29 Oct 2001	Sch. 1 (item 97)
Financial Framework Legislation Amendment Act 2005	8, 2005	22 Feb 2005	s. 4 and Schedule 1 (items 84–88, 496): Royal Assent	s. 4 and Sch. 1 (item 496)
Australian Centre for International Agricultural Research Amendment Act 2007	115, 2007	28 June 2007	1 July 2007	Sch. 2
Statute Law Revision Act 2008	73, 2008	3 July 2008	Schedule 4 (items 80–86): 4 July 2008	—
Acts Interpretation Amendment Act 2011	46, 2011	27 June 2011	Schedule 2 (items 122–127) and Schedule 3 (items 10, 11): 27 Dec 2011	Sch. 3 (items 10, 11)

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Public Governance, Performance and Accountability (Consequential and Transitional Provisions) Act 2014 (C2014A00062)	62, 2014	30 June 2014	sch 6 (items 11, 12), sch 7 (items 194-201), sch 14: 1 July 2014 (s 2(1) items 6, 14)	sch 14
as amended by				
Public Governance and Resources Legislation Amendment Act (No. 1) 2015 (C2015A00036)	36, 2015	13 Apr 2015	sch 2 (items 7-9), sch 7: 14 Apr 2015 (s 2)	sch 7
as amended by				
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015 (C2015A00126)	126, 2015	10 Sept 2015	sch 1 (item 486): 5 Mar 2016 (s 2(1) item 2)	—
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015 (C2015A00126)	126, 2015	10 Sept 2015	sch 1 (item 495): 5 Mar 2016 (s 2(1) item 2)	—
Commonwealth Entities Legislation Amendment Act 2026 (C2026A00013)	13, 2026	26 Mar 2026	sch 1 (items 17-32): 27 Mar 2026 (s 2(1) item 2)	sch 1 (items 18, 23, 26, 32)

Endnotes

Endnote 3—Legislation history

- (a) The *Australian Centre for International Agricultural Research Act 1982* was amended by section 3 only of the *Statute Law (Miscellaneous Provisions) Act (No. 1) 1983*, subsection 2(1) of which provides as follows:
- (1) Subject to this section, this Act shall come into operation on the twenty-eighth day after the day on which it receives the Royal Assent.
- (b) The *Australian Centre for International Agricultural Research Act 1982* was amended by section 3 only of the *Statute Law (Miscellaneous Provisions) Act (No. 2) 1983*, subsection 2(1) of which provides as follows:
- (1) Subject to this section, this Act shall come into operation on the twenty-eighth day after the day on which it receives the Royal Assent.
- (c) The *Australian Centre for International Agricultural Research Act 1982* was amended by subsection 151(1) only of the *Public Service Reform Act 1984*, subsection 2(4) of which provides as follows:
- (4) The remaining provisions of this Act shall come into operation on such day as is, or on such respective days as are, fixed by Proclamation.
- (d) The *Australian Centre for International Agricultural Research Act 1982* was amended by section 45 only of the *Public Service and Statutory Authorities Amendment Act 1985*, subsection 2(7) of which provides as follows:
- (7) The remaining provisions of this Act shall come into operation on the twenty-eighth day after the day on which this Act receives the Royal Assent.
- (e) The *Australian Centre for International Agricultural Research Act 1982* was amended by section 3 only of the *Statute Law (Miscellaneous Provisions) Act 1987*, subsection 2(1) of which provides as follows:
- (1) Subject to this section, this Act shall come into operation on the day on which it receives the Royal Assent.

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part I	
s 3.....	am No 170, 1992; No 152, 1997; No 8, 2005; No 115, 2007; No 13, 2026
Part II	
s. 4.....	am. No. 39, 1983; No. 115, 2007
s. 4A.....	ad. No. 115, 2007
Heading to s. 5.....	am. No. 115, 2007
s. 5.....	am. No. 170, 1992; No. 115, 2007
s. 5A.....	ad. No. 115, 2007
s. 6.....	rs. No. 115, 2007
Part III	
Part III.....	rs. No. 115, 2007
Division 1	
s. 7.....	rs. No. 115, 2007
s. 8.....	am. No. 170, 1992
	rs. No. 115, 2007
Heading to s. 9.....	am. No. 152, 1997
	rs. No. 115, 2007
s. 9.....	am. No. 152, 1997
	rs. No. 115, 2007
Division 2	
s. 10.....	am. No. 152, 1997
	rs. No. 115, 2007
s. 11.....	am. No. 91, 1983
	rs. No. 115, 2007
ss. 12, 13.....	rs. No. 115, 2007
s. 14.....	am. No. 152, 1997
	rs. No. 115, 2007

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am. No. 46, 2011
Note to s. 14.....	rs. No. 46, 2011
s. 15.....	am. No. 152, 1997
	rs. No. 115, 2007
s. 16.....	rs. No. 115, 2007
s. 16A.....	ad. No. 115, 2007
	am No 62, 2014
s. 16B.....	ad. No. 115, 2007
	rs No 62, 2014
Division 3	
ss. 16C–16H.....	ad. No. 115, 2007
Division 4	
s. 16J.....	ad. No. 115, 2007
Division 5	
s. 16K.....	ad. No. 115, 2007
Part IV	
s. 18.....	am. No. 115, 2007
s. 19.....	am. No. 170, 1992; No. 146, 1999; No. 115, 2007; No. 73, 2008
s. 19A.....	ad. No. 115, 2007
ss. 21, 22.....	am. No. 73, 2008
s. 23.....	am. No. 170, 1992; No. 115, 2007; No. 73, 2008
Part V	
Part V.....	rs. No. 115, 2007
s. 24.....	rs No 115, 2007
	am No 13, 2026
s. 25.....	am. No. 159, 2001
	rs. No. 115, 2007
s. 26.....	rs. No. 122, 1991
	am. No. 146, 1999
	rs. No. 115, 2007
s. 27.....	am. No. 122, 1991

Endnote 4—Amendment history

Provision affected	How affected
	rs. No. 115, 2007
s 28.....	rs No 115, 2007; No 13, 2026
s 29.....	rs No 115, 2007
	am No 46, 2011; No 62, 2014; No 13, 2026
s. 29A.....	ad. No. 115, 2007
s. 29B.....	ad. No. 115, 2007
s 29BA	ad No 13, 2026
s 29C.....	ad No 115, 2007
	am No 13, 2026
s. 29D.....	ad. No. 115, 2007
	rep No 62, 2014
s, 29E	ad. No. 115, 2007
	am No 62, 2014
Part VI	
ss. 30, 31	am. No. 63, 1984; No. 146, 1999; No. 115, 2007
s. 32.....	am. No. 166, 1985
	rs. No. 115, 2007
Pt VIA	
Pt VIA.....	ad No 62, 2014
s 32A.....	ad No 62, 2014
Part VII	
hdg to Pt VII	rs No 62, 2014
Heading to s. 33	am. No. 152, 1997
	rs. No. 8, 2005
s. 33.....	am. No. 152, 1997
	rs. No. 8, 2005
	am No 62, 2014
s. 34.....	am. No. 170, 1992
	rs. No. 152, 1997; No. 8, 2005; No. 115, 2007
Note to s 34.....	am No 62, 2014
Heading to s. 35	am. No. 152, 1997

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rs. No. 8, 2005; No. 115, 2007
s. 35.....	am. No. 152, 1997
	rs. No. 8, 2005; No. 115, 2007
s. 36.....	am. No. 152, 1997; No. 8, 2005
	rep. No. 115, 2007
s. 37.....	rs. No. 170, 1992
	rep. No. 115, 2007
s. 38.....	rep. No. 115, 2007
s. 38A.....	ad. No. 141, 1987
	rep. No. 152, 1997
s. 38AA.....	ad. No. 170, 1992
	rep. No. 152, 1997
s. 38B.....	ad. No. 141, 1987
	rep. No. 152, 1997
Part VIII	
s. 39.....	am. No. 91, 1983
	rs. No. 152, 1997
	am. No. 115, 2007
	rs No 62, 2014
s. 40.....	am. No. 43, 1996
	rep. No. 115, 2007
s. 41.....	am. No. 170, 1992
	rs. No. 115, 2007
ss. 43, 44.....	rep. No. 170, 1992